



# General Assembly

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## Eleventh emergency special session

Agenda item 5

**Letter dated 28 February 2014 from the Permanent Representative of Ukraine to the United Nations addressed to the President of the Security Council ([S/2014/136](#))**

## **Resolution adopted by the General Assembly on 12 October 2022**

[without reference to a Main Committee ([A/ES-11/L.5](#))]

### **ES-11/4. Territorial integrity of Ukraine: defending the principles of the Charter of the United Nations**

*The General Assembly,*

*Recalling* the obligation of all States under Article 2 of the Charter of the United Nations to refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations, and to settle their international disputes by peaceful means in such a manner that international peace and security and justice are not endangered,

*Reaffirming* the principle of customary international law, as restated in its resolution [2625 \(XXV\)](#) of 24 October 1970, entitled “Declaration on Principles of International Law concerning Friendly Relations and Cooperation among States in accordance with the Charter of the United Nations”, that no territorial acquisition resulting from the threat or use of force shall be recognized as legal,

*Recalling* its resolutions [68/262](#) of 27 March 2014, entitled “Territorial integrity of Ukraine”, [ES-11/1](#) of 2 March 2022, entitled “Aggression against Ukraine”, and [ES-11/2](#) of 24 March 2022, entitled “Humanitarian consequences of the aggression against Ukraine”,

*Noting* that the Donetsk, Kherson, Luhansk and Zaporizhzhia regions of Ukraine are areas that, in part, are or have been under the temporary military control of the Russian Federation, as a result of aggression, in violation of the sovereignty, political independence and territorial integrity of Ukraine,



*Noting also* that the decisions of 21 February and 29 September 2022 by the Russian Federation related to the status of the Donetsk, Kherson, Luhansk and Zaporizhzhia regions of Ukraine are a violation of the territorial integrity and sovereignty of Ukraine and inconsistent with the principles of the Charter,

*Noting with concern* that the illegal so-called referendums were organized from 23 to 27 September 2022 in these regions as attempts to modify the internationally recognized borders of Ukraine,

*Noting* the Secretary-General's statement of 29 September 2022 in which he recalled that any annexation of a State's territory by another State resulting from the threat or use of force is a violation of the principles of the Charter and international law,

1. *Reaffirms its commitment* to the sovereignty, independence, unity and territorial integrity of Ukraine within its internationally recognized borders, extending to its territorial waters;

2. *Condemns* the organization by the Russian Federation of illegal so-called referendums in regions within the internationally recognized borders of Ukraine and the attempted illegal annexation of the Donetsk, Kherson, Luhansk and Zaporizhzhia regions of Ukraine, following the organization of the above-mentioned referendums;

3. *Declares* that the unlawful actions of the Russian Federation with regard to the illegal so-called referendums held from 23 to 27 September 2022 in parts of the Donetsk, Kherson, Luhansk and Zaporizhzhia regions of Ukraine that, in part, are or have been under the temporary military control of the Russian Federation, and the subsequent attempted illegal annexation of these regions, have no validity under international law and do not form the basis for any alteration of the status of these regions of Ukraine;

4. *Calls upon* all States, international organizations and United Nations specialized agencies not to recognize any alteration by the Russian Federation of the status of any or all of the Donetsk, Kherson, Luhansk or Zaporizhzhia regions of Ukraine, and to refrain from any action or dealing that might be interpreted as recognizing any such altered status;

5. *Demands* that the Russian Federation immediately and unconditionally reverse its decisions of 21 February and 29 September 2022 related to the status of certain areas of the Donetsk, Kherson, Luhansk and Zaporizhzhia regions of Ukraine, as they are a violation of the territorial integrity and sovereignty of Ukraine and inconsistent with the principles of the Charter of the United Nations, and immediately, completely and unconditionally withdraw all of its military forces from the territory of Ukraine within its internationally recognized borders;

6. *Welcomes* the efforts of the United Nations, Member States and humanitarian organizations to respond to the humanitarian and refugee crisis;

7. *Welcomes and expresses its strong support* for the continued efforts by the Secretary-General and Member States, and calls upon Member States and international organizations, including the Organization for Security and Cooperation in Europe and other international and regional organizations, to support the de-escalation of the current situation and a peaceful resolution of the conflict through political dialogue, negotiation, mediation and other peaceful means, with respect for the sovereignty and territorial integrity of Ukraine within its internationally recognized borders and in accordance with the principles of the Charter;

8. *Decides* to adjourn the eleventh emergency special session of the General Assembly temporarily and to authorize the President of the General Assembly to resume its meetings upon request from Member States.

*14th plenary meeting  
12 October 2022*